



Maritime &
Coastguard
Agency

Guidance

MGN 583 (F) Amendment 2 ILO Work in fishing convention - fishermen's work agreements

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Summary

Every fisherman working on a fishing vessel engaged in commercial operations must have a fisherman's work agreement (FWA), setting out their terms and conditions.

Regulations specify the minimum mandatory contents of a FWA.

General UK employment law includes three additional pieces of information which employers must provide to their employees. It is recommended that these are included in the FWA:

- normal hours of work and any provision for overtime
- grievance and disciplinary procedures
- any pension attached to the employment
- each fisherman must have an opportunity to review and understand their FWA before they are required to sign it and must be given a signed copy.
- a copy of the FWA must also be held on board the vessel with a translation in English if necessary
- model agreements (non-mandatory) for employed fishermen and for self-employed share fishermen are provided separately to this notice, as annex A and annex B.

Amendment 2 updates references only.

1. Introduction

1.1 Every fisherman (regardless of their employment status) working on a fishing vessel must have a transparent and enforceable statement of their living and working conditions on board, referred to as a “fisherman’s work agreement” (FWA).

1.2 For employed fishermen on UK fishing vessels, FWAs replace the existing requirement for crew agreements (under the Merchant Shipping (Crew Agreements, Lists of crew and Discharge of Seamen) (Fishing Vessels) Regulations 1972. Instead of a common agreement that all the crew members sign, each fisherman must have an individual copy that they and the fishing vessel owner (or employer or another party) has signed.

1.3 FWAs are a new requirement for self-employed share fishermen.

2. Application

2.1 The Regulations implementing the requirement for FWAs apply to all UK fishing vessels regardless of size and wherever they are in the world, when engaged in commercial fishing operations (as opposed to undertaking another role such as guardship duties, when the requirements of the Maritime Labour Convention apply). They also apply to a non-UK fishing vessel when it is in UK waters when engaged in commercial fishing operations.

2.2 The requirement to have a FWA does NOT apply to a fishing vessel owner who is single-handedly operating the vessel.

3. Minimum requirements for a FWA

3.1 A FWA must be comprehensible to the fisherman and consistent with the provisions of ILO 188. 3.2 A FWA must contain certain minimum pieces of information. These are:

For both employed and self-employed (share) fishermen

- the fisherman's family name and other names, date of birth or age, and birthplace;
- the place at which and date on which the agreement was concluded; the name of the fishing vessel or vessels and the registration number of the vessel or vessels on board which the fisherman undertakes to work;
- the name of the employer, or fishing vessel owner, or other party to the agreement with the fisherman;
- the voyage or voyages to be undertaken, if this can be determined at the time of making the agreement;
- the capacity in which the fisherman is to be employed or engaged;
- if possible, the place at which and date on which the fisherman is required to report on board for service;
- the provisions to be supplied to the fisherman, unless some alternative system is provided for by national law or regulation;
- the termination of the agreement and the conditions thereof, namely:
 - if the agreement has been made for a definite period, the date fixed for its expiry;
 - if the agreement has been made for a voyage, the port of destination and the time which has to expire after arrival before the fisherman shall be discharged;
 - if the agreement has been made for an indefinite period, the conditions which shall entitle either party to rescind it, as well as the required period of notice for rescission, provided that such period shall not be less for the employer, or fishing vessel owner or other party to the agreement with the fisherman;
- the protection that will cover the fisherman in the event of sickness, injury or death in connection with service;
- the health and social security coverage and benefits to be provided to the fisherman by the employer, fishing vessel owner, or other party or parties to the fisherman's work agreement, as applicable;
- the fisherman's entitlement to repatriation.

Plus, for employed fishermen

- the amount of wages, or the amount of the wage and share and the method of calculating the latter if remuneration is to be on a combined

basis, and any agreed minimum wage;

- the amount of paid annual leave or the formula used for calculating leave, where applicable. Plus for self-employed share fishermen
- the amount of the share and the method of calculating such share if remuneration is to be on a share basis,

3.3 The FWA may consist of more than one document. For example, if the fisherman is employed under a collective bargaining agreement (CBA), the CBA may form part of their FWA.

3.4 The FWA must be signed by the fishing vessel owner, employer or other party to the agreement and the fisherman.

4. Model agreements

4.1 MCA has produced two model FWAs, one for use for employed fishermen and the other for self employed share fishermen. These are in annex A and annex B respectively. There is no requirement to use these model agreements; they are supplied to assist those who do not have the capacity to produce an FWA for their own use. Any FWA must however include the minimum information at section 3 of this MGN.

5. Responsibilities of the fishing vessel owner

5.1 It is the fishing vessel owner's responsibility to ensure that all the fishermen working on their vessel have a FWA which complies with the Regulations. This applies even if the fisherman is employed by someone else (e.g. an employment agency). This is because under ILO 188, it is the fishing vessel owner who takes responsibility for compliance with ILO 188.

5.2 Before the agreement is signed by the fisherman, the fishing vessel owner must satisfy themselves that –

- the fisherman has had sufficient opportunity to review and take advice on the terms of and conditions of the agreement;
- the fisherman has received an explanation of their rights and responsibilities under the agreement; and

- the fisherman is entering into the agreement freely.

5.3 Once the agreement is signed by both parties, the fishing vessel owner must ensure that the fisherman receives an original copy as soon as possible. Each fisherman must have copies of all documents forming part of the agreement. For example, if the FWA incorporates the terms and conditions from a CBA, which are referenced in the individual agreement, the fishermen must have a copy of both their individual agreement and the CBA. The two documents together would form an FWA.

5.4 A copy of the FWA must also be held on board the fishing vessel, and be available for the fisherman to view on request.

5.5 If the FWA is not in English, an English translation of the FWA must also be available on board.

6. Additional provisions required by UK employment legislation

6.1 In addition to the minimum content of an FWA as required by ILO 188, employment contracts in the UK must also include the following information (for employed fishermen only):

- hours of work Employees in the UK must be told what hours they are being paid to work, and whether any overtime rates apply for hours in excess of those hours.
- disciplinary and grievance procedures There must be a disciplinary and grievance procedure that employees can refer to, if either their employer takes disciplinary procedures against them or if they have any concerns about their employment. ACAS provides guidance. <https://www.acas.org.uk/acas-code-of-practice-on-disciplinary-and-grievance-procedures>. The FWA must include information about how to access this procedure.
- pension benefits There is no requirement for the employer of fishermen on UK fishing vessels to provide a pension scheme, but the Agreement must say whether or not there is such a scheme.

7. Fishermen's complaints

7.1 In the event of any dispute regarding the application of a FWA, or the terms and conditions contained therein, in the first instance the fisherman should take this up with their management or the fishing vessel owner under the applicable Disciplinary and Grievance procedure.

7.2 If the on-board procedure fails to resolve a complaint, the fisherman may raise it with an authorised officer in the port where the fishing vessel is moored or anchored. Where the fishing vessel is in a port in the UK the complaint should be reported to the nearest MCA Marine Office.

7.3 Should these two steps fail to resolve the complaint or, for any other reason, action in the courts becomes necessary, it should be noted that whilst UK ships are subject to UK law, powers to determine a matter are not restricted to the UK courts. A fisherman or fishing vessel owner may undertake proceedings in a court in another country, although such proceedings should normally take account of relevant UK law.

7.4 For additional information about making complaints refer to MGN 589 (F) (<https://www.gov.uk/government/publications/mgn-589-ilo-work-in-fishing-convention-complaints>).

8. More information

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Please note that all addresses and telephone numbers are correct at time of publishing.



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